

STATE OF NEW YORK

1672--A

2025-2026 Regular Sessions

IN SENATE

January 13, 2025

Introduced by Sens. MARTINEZ, ADDABBO, BYNOE, CANZONERI-FITZPATRICK, CHAN, CLEARE, LIU, MARTINS, MATTERA, MURRAY, PALUMBO, RHOADS, SALAZAR, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to certain construction projects

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 1 of section 3602 of the education law is amended by adding a new paragraph nn to read as follows:

nn. "Construction project" shall mean the construction, reconstruction, rehabilitation or improvement of any school building where a district receives any apportionment for capital outlays, debt service, or building aid under subdivision six of this section and the school building is sited within the Long Island region as defined in subparagraph two of paragraph a of subdivision four of this section and the total estimated cost of the contract or contracts for the project is one million dollars or more.

§ 2. Paragraph a of subdivision 6 of section 3602 of the education law is amended by adding a new subparagraph 13 to read as follows:

(13) Each contract involving the awarding of a construction project shall require the use of a project labor agreement, as defined in subdivision one of section two hundred twenty-two of the labor law, for all contractors and subcontractors on the project, consistent with paragraph (a) of subdivision two of section two hundred twenty-two of the labor law.

§ 3. This act shall take effect January 1, 2026, and shall apply to all construction projects for which the commissioner of education has not approved plans and specifications pursuant to section 408 of the education law as of such effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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